BRIAN MARANDANI

Versus

THE STATE

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
MASVINGO 12 February 2026

Application for bail pending trial

T. Nyoka for the applicant
M. Tembo for the respondent

DUBE-BANDA J:

[1] This is an application for bail pending trial. After hearing submissions, in an *ex-tempore* judgment, I dismissed the application. In a letter to the Registrar, the applicant has requested written reasons for the dismissal of his application. These are the reasons.

[2] The applicant stands charged with five counts of robbery as defined in s126(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. The applicant is alleged to have committed these crimes in the company of six other accomplices who are still at large. It was alleged that on 24 January 2026, the applicant, in the company of his six accomplices, hatched a plan to rob the first complainant of his pregnant gold carbons. They proceeded to the mine at around 01.00 am, armed with two AK47 rifles and machetes. It was further alleged that they pounced on the complainants, assaulted them, and tied all except the first complainant. They struck the fifth complainant on the arm, and thereafter took a Samsung A73, a Huawei Y9, a Kgtel cell phone, and a Tecno cell phone belonging to the third complainant. They proceeded to the cyanidation plant and broke the carbon columns to steal 200 kilograms of pregnant gold carbons. The value of the stolen property is USD$13 780, and nothing was recovered.

[3] The application is opposed on the broad basis that the administration of justice will be prejudiced by the release on the applicant on bail.

[4] In this case, the charge levelled against the applicant involves an offence listed in Part 1 of the Third Schedule of the Criminal Procedure and Evidence Act [*Chapter 9:07*] (hereinafter the Act). This is so because robbery, involving the use by the accused or any co-perpetrators or participants of a firearm, is specified in Part 1 to the Third Schedule. His bail application must therefore be determined in terms of s 115C(2)(a)(ii) of the Act, which provides as follows:

> "Where an accused person who is in custody in respect of an offence applies to be admitted to bail before a court has convicted him or her of the offence the accused person shall, if the offence in question is one specified in—
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> (A) Part I of the Third Schedule, bear the burden of showing, on a balance of probabilities, that it is in the interests of justice for him or her to be released on bail, unless the court

> determines that, in relation to any specific allegation made by the prosecution, the prosecution shall bear that burden."

[5] Section 115C(2)(ii)A of the Act places a burden or *onus* on an accused to satisfy the court by way of evidence that it is in the interests of justice for him or her to be released on bail. In other words, the applicant has to prove on a balance of probabilities that it is in the interests of justice for him to be released on bail. It then follows that the bar for granting bail in the crimes listed thereat is lifted a bit higher by the legislature. This is what the applicant has to contend with, and this court must give full effect to such legislative provisions. See *Ncube* v *The State* 2021 (2) ZLR 255 (H) at 232.

[6] Again s 117(6) of the Act provides:

> "Notwithstanding any provision of this Act, where an accused is charged with an offence referred to in Part I of the Third Schedule, the judge or (subject to proviso (iii) to section 116) the magistrate hearing the matter shall order that the accused be detained in custody until he or she is dealt with in accordance with the law, unless the accused, having been given a reasonable opportunity to do so, adduces evidence which satisfies the judge or magistrate that exceptional circumstances exist which in the interests of justice permit his or her release."(My emphasis).

[7] Whether a court may be satisfied that exceptional circumstances exist depends on the facts and circumstances established in each case. It is clear, however, that they must be at least compelling enough to take the case made out for the granting of bail beyond the ordinary. See *Ncube* v *The State* (*supra*) at 232.

[8] The applicant chose to bring his application for bail by means of a bail statement in terms of Part XV of the High Court Rules, 2021. He filed two affidavits in support of his application. The second affidavit was deposed to by his mother, contending that on the day in question, the applicant was at her residence in Shurugwi, hence he could not have possibly committed the crime he is charged with. In his bail statement and affidavit, he categorically denies involvement in the crimes he is charged with. It is the applicant's contention that at the time the offences were allegedly committed, he was staying at the farm together with his mother and his wife. He avers that this is a case of mistaken identity. Mr. *Nyoka*, counsel for the applicant, strenuously emphasised that there was no strong *prima facie* case against the applicant. Counsel argued that the applicant was not involved in the commission of these crimes, and he was not positively identified. In the statement and affidavit filed in support of this application, the applicant avers that the risk of abscondment is non- existent because the State's case is weak and he is of fixed abode.

[9] The State opposed the application, predicating its opposition on the affidavit of the investigating officer. The opposition to the application is on the premise that there is a strong *prima facie* case against the applicant, and given the nature of the evidence against him, he is a flight risk. Mr *Tembo,* counsel for the State, argued that the applicant was positively identified by the complainants, who are eyewitnesses. The State contends that the applicant was seen by the complainants during the commission of these crimes. It was contended that the applicant and his accomplices, who are at large, were armed with two AK47 rifles and machetes. In

addition, it was argued that it was the information provided by the complainants that led to the arrest of the applicant.

[10] In *S* v *Jongwe* 2002 (2) ZLR 209 (S), the Supreme Court had occasion to address the principles relevant to the assessment of the risk of abscondment in an application for bail pending trial. CHIDYAUSIKU CJ had this to say:

> "RISK OF ABSCONDMENT
> In judging risk the court ascribes to the accused the ordinary motives and fears that may sway human nature. Accordingly, it is guided by the character of the charges and the penalties which in all probability would be imposed if convicted, the strength of the state case, the ability to flee to a foreign country and the absence of extradition facilities, the past response of being released on bail and the assurance given that is intended to stand trial.
>
> It is clear from the above that the critical factors in the above approach are the nature of the charges and the severity of the punishment likely to be imposed upon conviction and also the apparent strength and weakness of the state case."

See *S v Phiri* 2021 (1) ZLR 109 (H).

[11] For the purposes of determining this matter, this court cannot ignore the evidence of the investigating officer, which directly links the applicant to the commission of these crimes he is charged with. On the evidence, facts, and circumstances of this case, I find that the State has a strong *prima facie* case against the applicant. The applicant is facing very serious charges. Robbery with the use of AK47 rifles is very serious. If convicted, he is most likely going to be sentenced to a lengthy custodial term; thus, he will be tempted to abscond and not stand trial. The temptation for the applicant to abscond if granted bail is real. The applicant is a flight risk. Therefore, there is merit in the prosecution's contention that the combination of the strength of the State case against the applicant, coupled with the severity of the sentence likely to be imposed upon conviction, is likely to serve as an inducement for him to take flight.

[12] In addition, the applicant is not only a flight risk, but his release on bail, given the serious allegations against him of armed robbery, using AK47 rifles will undermine the objective and proper functioning of the criminal justice system and the bail institution. On a conspectus of all the facts and evidence before the court, I am of the view that the applicant has failed to show any exceptional circumstances which, in the interests of justice, would permit his release on bail. The cumulative effect of these facts constitutes a weighty indication that bail should not be granted.

[13] It is for these reasons that I dismissed this application for bail pending trial.

Kwande Legal Practitioners, applicant's legal practitioners

National Prosecuting Authority, respondent's legal practitioners